

Athens, 11-10-2023

Ref. No.: 2543

DECISION 31/2023

(Section)

The Hellenic Data Protection Authority convened in a Section composition via teleconference on 04-10-2023, following an invitation from its President, in order to examine the case referred to in the background of this document. Present were Georgios Batzalexis, Deputy President, in the absence of the President of the Authority, Konstantinos Menoudakis, the regular member, Konstantinos Lamprinoudakis, the alternate member Maria Psalla, substituting for the regular member Grigorios Tsolias, who, although duly invited in writing, was absent due to an impediment, and the alternate member Nikolaos Libos as rapporteur according to articles 3(b) and 8(2) of the Authority's Operating Regulation. Also present at the meeting, by order of the President, were Kyriaki Karakasi, legal auditor – lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary.

The Authority took into consideration the following:

With complaint No. G/EIS/10340/22-09-2022, A alleges that there was an unlawful disclosure of her health data to third parties. Specifically, she states that on 23-03-2022, she sent to the already reported Inter-Municipal Water Supply and Sewerage Company X (hereinafter DEYA X), where she serves as a civil engineering employee, a Certificate of Positive Diagnostic Testing for Coronavirus COVID-19, recording the result of the molecular test she underwent on 22-03-2022, while on 24-03-2022, she was informed by the competent Service of Civil Protection that she was required to remain in isolation for five (5) days following the diagnosis. However, on the date of the expiration of the five-day isolation, namely on 28-03-2022, she claims that her attending physician recommended a five-day leave due to her fatigue following the subsidence of the coronavirus symptoms. Subsequently, on 29-03-2022, and while the relevant Leave Bulletin for the period from 28-03-2022 to 01-04-2022 had been issued for her, she attended, after performing a self-diagnostic test that turned out negative, as stated in the complaint, the premises of the respondent to support a matter concerning her that was to be discussed before the Board of Directors of DEYA X. In fact, according to the allegations, the President of the aforementioned Board of Directors informed the complainant that she could attend if she wished. The complainant notes that when she arrived, she verbally informed the Secretary of the Board of Directors about her previous illness due to the fact that she was asked about it in front of her by the Director of the Administrative - Financial Service of DEYA X. In the meeting concerning the examination of the complainant's issue, seven people were present in person, including the General Director of DEYA X. Furthermore, according to the allegations, on 30-03-2022, DEYA X requested the submission of the result of the self-diagnostic test that the complainant underwent on the date of the aforementioned meeting of the Board of Directors. It is noted that the complainant, responding to the request for the collection of the said result by DEYA X, sent it on 30-03-2022 to the email address of the personnel of the respondent. Moreover, the General Director of DEYA X on 31-03-2022 sent an email to the Personnel Department of DEYA X, to the President and the Secretariat of the Board of Directors of DEYA X, to the Director of Administrative - Financial Affairs, as well as to the Head of the Administrative Department of the aforementioned respondent, detailing the appearance of the complainant on 29-03-2022 before the aforementioned Board of Directors and addressing the question to the Head of the Administrative Department regarding whether a Certificate of Negative Diagnostic Testing for Coronavirus COVID-19 had been posted by the complainant on the day of her appearance before the Board of Directors, in the context of "informal," as noted,

3

of the relevant rule. According to the claims of the complainant, the contentious electronic message did not serve the purpose of informing the members of the Board of Directors of DEYA X, as the in-person meeting with her presence had already taken place. It is noted, among other things, in the context of the complaint under examination that the General Director never informed the employees of DEYA X

in writing about any "informal rules" regarding the process of returning sick employees to the premises of the complainant. Furthermore, it is emphasized that the recipient of the contentious message from the General Director, due to the nature of the question posed, namely whether a certificate of a negative coronavirus diagnostic test had been registered, was the Head of the Administrative Department, and therefore the notification to the other recipients was unnecessary.

Subsequently, according to the allegations, the General Director of DEYA X sent to the Autonomous Directorate of Civil Protection of Region Y, the document with reference number ..., requesting information regarding the determination of the measures that DEYA X must take in order for its actions to be aligned with the urgent measures to address the negative consequences of the emergence of COVID-19 and the need to limit its spread. At the same time, information was requested on whether the in-person participation of the complainant in the Board of Directors meeting of DEYA X on 29-03-2022 was legitimized. The General Director presented in the aforementioned document to the aforementioned Directorate of Region Y a detailed history of the complainant's illness, attaching, among other things, the results of the relevant previous diagnostic tests that the complainant had undergone, as well as the medical opinions that the latter had submitted to her Service. In fact, the same document that the General Director of DEYA X addressed to the aforementioned Directorate was further forwarded, including, indeed, the attached documents that accompanied it, as previously stated, to the members of the Board of Directors of DEYA X. Moreover, as noted by the complainant, the attached documents included her data such as her Social Security Registration Number, her Tax Identification Number, and her contact phone number, for which there was no justification for their disclosure to third parties, especially without her consent. In response to the above document from DEYA X, the aforementioned Autonomous Directorate, with document number ..., pointed out that the only competent authorities for conducting contact tracing are the General Secretariat for Civil Protection and the National Public Health Organization, which exclusively collect, process, and manage the data of confirmed COVID-19 cases, while referring to the document number 6214/23-12-2021, issue B', with its amendments regarding the applicable measures and isolation procedures.

In light of the above, the complainant complains about the unlawful processing of the aforementioned special category of data concerning her health, as they were disclosed to third parties without her prior notification and consent, although the sole purpose for which she disclosed the said data to the already complained DEYA X was to obtain sick leave. Furthermore, according to the claims of the complainant, her data could have been deleted from the aforementioned documents that concerned her and were disclosed to third parties, as stipulated.

Regarding the factual circumstances that followed the aforementioned contentious processing of the complainant's personal data, she states that with her application dated 23-05-2022 to the Data Protection Officer of DEYA X, she requested, among other things, to be informed whether the Data Protection Officer himself was aware of the disclosure and further transmission to third parties of the data concerning her health as well as the purpose of the contentious processing. Furthermore, with the same application, the complainant stated to DEYA X that she wished to limit the processing of the data concerning her health status, on the one hand, and that she "opposes their deletion," as she has objections to their processing, according to Article 21 paragraph 1 of the GDPR, which is based on Article 6 paragraph 1 point e or f of the GDPR. In the response dated 24-05-2022, the Data Protection Officer of DEYA X stated that he had not been informed of the incident presented by the complainant, while in his response dated 30-05-2022 to the complainant, he provided her with the following information: "...regarding the health data of the Employee, they are processed by DEYA X for the purpose of providing sick leave or if they are necessary for the provision of the Employee's services to DEYA X. Their processing may...

5

to be necessary based on labor law and social security law, as well as for the confirmation of their suitability for the specific job position within the framework of the periodic medical examination conducted by the Occupational Physician." Subsequently, it is mentioned that on 03-06-2022, the objection to the contested processing and the request for limitation of the processing of the complainant's personal data were communicated to DEYA X through the Data Protection Officer. With

her application numbered ... to DEYA X, the complainant reiterated the aforementioned requests regarding objection and limitation of processing, as she requested to be informed, among other things, about the legality and purpose for which the notification and transmission of her health data to third parties took place. Subsequently, DEYA X, in its letter numbered ... sent to the complainant, argued, among other things, that both the Board of Directors of DEYA X and the General Director and the Financial Director exercise administration and therefore such requires access, processing, and control of personal data of the staff to achieve the intended purpose within the framework of effective administration. Regarding the transmission of the contested data of the complainant to the Region of Ψ, DEYA X claims that the processing was lawful, as it took place based on Article 24 paragraph 1 subparagraphs a' and d' of Law 4624/2019, while it concludes by inviting the complainant to provide explanations regarding how official documents and emails concerning her, of which she was not a recipient, came to her knowledge.

Additionally, within the framework of the complaint under examination, among other things, the letter numbered ... from DEYA X to the Independent Directorate of Civil Protection of the Region of Ψ is mentioned, in which, as alleged, the request for limitation and objection to the processing of the complainant's personal data was accepted.

The Authority, in the context of examining the above complaint, with its letter numbered Γ/ΕΞ/3100/05-12-2022, requested clarifications from DEYA X regarding the allegations, calling upon the latter to comment particularly on the contested processing of the complainant's health data (i.e., as per her claims, the notification of these to both the members of the Board of Directors of DEYA X and the Director of Administrative - Financial, as well as to the Civil Protection Department of the Region of Ψ), to clarify whether there was any notification to the Data Protection Officer of their Service (submitting any existing relevant documents) and to specify how the health data of the complainant first came to the knowledge of the Director of Administrative - Financial on 29-03-2022. Subsequently, the Authority, in the context of examining the said complaint, with its letter numbered Γ/ΕΞ/3101/05-12-2022, requested clarifications from the Independent Directorate of Civil Protection of the Region of Ψ, asking it, in particular, to specify which data of the complainant it may be processing in the context of her illness from COVID-19, as well as to outline the actions it has taken regarding the complainant's case from the receipt of the first relevant document, i.e., from 01-04-2022 until the date of receipt of the above letter from the Authority, submitting any existing relevant documents.

Following this, with its response letter numbered Γ/ΕΙΣ/12638/16-12-2022, DEYA X, after reiterating the history of the complainant's illness, briefly states, among other things, the following: firstly, it notes that the complainant was not entitled to process and specifically, to obtain and invoke a document addressed by her to DEYA X regarding emails between members of the Board of Directors of the complainant and its staff that concerned the complainant. Subsequently, regarding the emergence of the complainant's health data into the knowledge sphere of the Financial Director of DEYA X, DEYA X emphasizes that due to the nature of the latter's responsibilities concerning payroll preparation and granting of leaves, it was necessary for him to process the contested data of the complainant. It is also argued that the oral reference of the said Director to the complainant's health status in the presence of both the complainant and another employee of DEYA X's staff falls outside the scope of the GDPR. Furthermore, reference is made to the document numbered (DEYA X) ... from the Independent Civil Protection Department of the Region of Ψ, according to which no further processing of the complainant's data took place on its part.

Regarding the contested notification to the Independent Directorate of Civil Protection of the Region of Ψ, DEYA X notes that it was lawful, to the extent that the said Service processes relevant data of individuals infected with the coronavirus and therefore already

7

The respondent was aware of the aforementioned data of the complainant, while this took place based on the provision of Article 24 paragraph 1 subparagraphs a' and d' of Law 4624/2019. The respondent further emphasizes that with her letter numbered 7672/24-06-2022, she requested from the relevant Independent Directorate the return of the file concerning the complainant's case as well as any copies thereof to ensure and limit any further processing. To this end, she also presents the response from the aforementioned Independent Directorate, which confirms from its side that the relevant documents

concerning the complainant have not been transmitted to third parties, no employee or third party had access to the content of the file concerning the complainant's case, and no form of processing of the relevant data has taken place. Furthermore, the respondent, the Municipal Water Supply and Sewerage Company (DEYA X), reiterates the claim regarding the necessity of having such data both at the Board of Directors of DEYA X and with the General Director and the Director of Administrative - Financial Affairs in the context of exercising effective management. The respondent adds that the relevant update took place also for the protection of the health of the members of its Board of Directors, while stating that it was the complainant herself who provided the Service with the medical certificate of her illness due to coronavirus, thereby disclosing her medical condition. Finally, the Independent Directorate for Civil Protection of the Region of Ψ, in its response numbered G/EIS/12636/16-12-2023 to the Authority, clarified that the Director of the said Service received a sealed envelope with the documents transmitted to him by the respondent DEYA X concerning the complainant, mentioning also their related response letter numbered ..., according to which they referred DEYA X to the General Secretariat for Civil Protection and the National Public Health Organization as entities that exclusively process the data of confirmed coronavirus cases, as well as to the applicable regulatory provisions for isolation measures and procedures. Subsequently, the said Independent Directorate confirms that it received the aforementioned document numbered ... from DEYA X, to which it responded as follows: "a) this data has not been transmitted to third parties, either in paper or digital form, to natural or legal persons, strictly applying the relevant legislation on the protection of personal data. b) No individual from our Service or third party had any access, in any way, to both the content and the details recorded in the received data, as there was relevant care on the part of the Director, and c) The contents within the file have not undergone any form of processing and are strictly maintained in their original form and condition." Finally, the aforementioned Independent Directorate states that with their response letter to DEYA X, the relevant file was returned to the latter, as the Directorate lacked any other authority regarding the case in question. Following this, the Authority summoned the complainant, the Independent Directorate for Civil Protection of the Region of Ψ, and the respondent, respectively, to a hearing with letters numbered G/EXE/1503/12-06-2023, G/EXE/1507/12-06-2023, and G/EXE/1509/12-06-2023, in order to be heard in the meeting of 21-06-2023 via teleconference of the competent Department. In the aforementioned meeting, the complainant appeared with her attorney, Anna Konstantopoulou (with Bar Association number ...), while the respondent DEYA X was represented by the president of its Administrative Council, B, and also present were the General Director of DEYA X, G, the Head of the Administrative - Financial Services Department of DEYA X, D, as well as the attorney representing the respondent, Nikolaos Kapetanis (with Bar Association number ...). The Data Protection Officer of DEYA X, E, was also present in case further clarifications were needed. The Independent Directorate for Civil Protection of the Region of Ψ was represented at the hearing by its Director, ST, who, after reiterating the claims made in the document numbered G/EIS/12636/16-12-2022 addressed to the Authority, answered the questions posed to him before the Department of the Authority, asserting, among other things, that the relevant file concerning the complainant has been returned to DEYA X, without any processing having taken place by his Service. He emphasized that during the time that elapsed until the return of the relevant file to DEYA X, it was kept secure with no access to it by anyone other than the Director, and after confirming that at present no data concerning the complainant is kept in his Service's records, he left the teleconference with the agreement of the President of the Department. After the said hearing, both the complainant and the respondent DEYA X were given a deadline to submit any written statements to further support their claims by 07-07-2023.

9

Subsequently, the complainant timely submitted her memorandum numbered Γ/ΕΙΣ/5024/06-07-2023, in which she states, among other things, that according to the letter dated 09-09-2022 received from the Data Protection Officer of DEYA X, the purpose of processing the health data of the employees of the complained entity is to provide sick leave or to facilitate the provision of services to DEYA X. The complainant emphasizes that the bodies of the complained Inter-Municipal Enterprise, as a special public purpose entity operating as a legal entity of private law with a charitable character, governed by the rules of private economy, do not constitute administrative bodies and their acts or omissions do not

pertain to the exercise of public authority. It is also emphasized that both DEYA X and the Independent Directorate of Civil Protection of Region Ψ are not competent to monitor, evaluate, trace, or control the coronavirus epidemic, and that the aforementioned Independent Directorate and the members of the Board of Directors of DEYA X are not authorized to obtain the health data of the complainant. Finally, the complainant, after summarizing again the factual circumstances of the critical day of the meeting of the Board of Directors of DEYA X, clarifies that the issue to be discussed, which concerned her, was related to a service matter regarding the coverage of a responsible position (see pages 19-21 of the complainant's post-hearing memorandum).

The complained DEYA X timely sent its memorandum numbered Γ/ΕΙΣ/5059/07-07-2023, in which, after largely reiterating the same claims as in its above-mentioned letter numbered Γ/ΕΙΣ/12638/16-12-2022 to the Authority, briefly notes, among other things, the following: DEYA X emphasizes that the complainant presented a different picture of her health condition during the critical Board meeting on 29-03-2022 from that which was certified after a clinical examination by the doctor, who diagnosed in his report dated 28-03-2023 that the complainant was suffering from coronavirus with symptoms of fever and fatigue. The complained entity reiterates the claim of lawful notification of the complainant's data to the Independent Directorate of Civil Protection of Region Ψ, as the latter processes related personal data and thus already knew the complainant's data. DEYA X even refers to the difficulty in determining the competent service or the correct applicable law due to the convoluted national legislative framework. Subsequently, the complained entity

10

repeats the content of the document numbered ... from the Independent Directorate of Civil Protection of Region Ψ, concluding that there was no violation of the personal data legislation, as it is confirmed that the disclosed data of the complainant did not undergo any processing by the aforementioned Directorate. Furthermore, DEYA X supports the lawful nature of the disclosure of the complainant's data to the above Directorate based on the provision of Article 24 paragraph 1 subparagraphs a and d of Law 4624/2019. Regarding the contentious (subsequent) notification of DEYA X's staff about the complainant's health condition, DEYA X considers it reasonable, especially since some members of the Board of Directors are under immunosuppression. Additionally, the complained entity points out that the Financial Director of DEYA X is responsible for payroll and granting leave and therefore lawfully processes the relevant health data of the complainant. DEYA X then notes that its Board of Directors, as well as the General Director and the Financial Director, process employee data within the framework of effective administration. Within the aforementioned framework, the contentious email dated 31-03-2022 was sent by the General Director (also) to the members of the Board of Directors, who perform their duties in a confidential manner; otherwise, they would not lawfully exercise their managerial duties, as any illness affects the smooth operation of DEYA X and the relevant notification is required for the adjustment of service priorities based on the available human resources. According to the complained entity, the processing of the complainant's data took place for the sake of protecting public health and within the framework of exercising good administration. In fact, DEYA X reiterates the claim of unlawful processing by the complainant of service-related email messages concerning her. Finally, the complained entity invokes its difficult financial situation with a significant decrease in its collectability and an increase in its fixed and inelastic expenses, emphasizing its character as a provider of a public good enterprise and highlighting the risk of financial deadlock and continuation of its operation that would be caused by any imposition of a fine against it, leading to its dissolution and liquidation.

The Authority, after examining the elements of the file, having heard the rapporteur and the clarifications from the assistant rapporteur, and after thorough discussion,

11

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Whereas, from the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation 2016/679) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.

Specifically, from the provisions of Articles 57 para. 1 (e) of the GDPR and 13 para. 1 (g) of Law 4624/2019, it follows that the Authority has the competence to address the complaint of A, as the personal data of the complainant, including her health data, as extensively mentioned above, were included in the filing system maintained by the said Service for the complainant as its employee, and therefore the extraction from the aforementioned filing system and further disclosure of this data to another Service, in this case, the Independent Directorate of Civil Protection of Region P, constitutes processing falling within the scope of Articles 2 para. 1 of the GDPR¹ and 2 of Law 4624/2019. Furthermore, the sending by email of the complainant's health data by the General Director of the complained party to the members of its Board of Directors, as well as to the Secretariat of the said Board, the Director of Administrative - Financial Affairs, and the Head of the Administrative Department of DEYA X constitutes automated processing which, likewise as mentioned above, falls within the regulatory scope of the GDPR and Law 4624/2019.

2. Whereas, according to Article 4 (2) of the GDPR, processing is defined as "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction," while according to the provisions of Article 4 (7) of the GDPR, the data controller is defined as "the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data (...)." Furthermore, according to Opinion 1/2010 regarding the concepts of "data controller" and "data processor" of the Article 29 Working Party for the determination of the data controller, three main elements are taken into account according to the aforementioned definition: a) the personal aspect ("the natural or legal person, public authority, agency or other body"), b) the possibility of joint control ("which, alone or jointly with others"), and c) the essential characteristics for distinguishing the data controller from other actors ("determines the purposes and means of the processing of personal data"). It is noted that the concept of the data controller plays a crucial role in the application of the rules for the protection of personal data, the proof of compliance with them (accountability principle, Article 5 para. 2 GDPR), and the attribution of responsibilities in case of violations.

Furthermore, it is explained in the aforementioned Opinion 1/2010 regarding the first element – as stated in the immediately preceding paragraph: "In the strategic perspective of the allocation of responsibilities, and in order to provide individuals to whom the data relates with a more stable and reliable entity for the exercise of their rights arising from the directive, it is preferable to consider the company or entity as the data controller rather than a specific individual within the company or entity. The company or entity will ultimately be held responsible for the processing of the data and for the obligations arising from data protection legislation, unless there is clear evidence indicating that a natural person is responsible. Generally, it should be presumed that the company or public authority is responsible for the processing activities that take place within the scope of their activities and risks. Occasionally, companies and public authorities appoint a specific individual responsible for carrying out processing tasks. However, even in cases where a specific natural person is appointed to ensure compliance with data protection principles or to process personal data,

13

In character, the aforementioned natural person will not be the data controller, but will act on behalf of the legal entity (company or public authority), which will remain responsible in the event of a breach of the principles in its capacity as the data controller (...) However, from a strategic perspective regarding the distribution of responsibilities, it is preferable to consider the company or authority as the data controller rather than a specific individual within the company or authority. The company or authority will ultimately be held responsible for the processing of data and the obligations arising from data protection legislation, unless there is clear evidence indicating that a natural person is responsible, for example, when a natural person working in a company or public authority uses data for their own purposes, outside the activities of the company." Furthermore, it is clarified in the aforementioned Opinion 1/2010 of the Article 29 Working Party: "(...) It does not matter whether the decision to process personal data is 'lawful' in the sense that the entity that made the relevant decision was

authorized to do so or that the data controller was formally appointed in accordance with a specific procedure. The issue of the legality of the processing of personal data will be relevant at a different stage and will be assessed in light of other articles (specifically, Articles 6-8) of the directive. In other words, it is important to ensure that, even in cases where the processing of data is unlawful, a data controller can be easily identified and held accountable for the processing (...)”².

In light of the above, it appears that the reported DEYA X, through its General Director, who, even if it is accepted that acted voluntarily, in any case, it does not emerge nor is proven from the entirety of the evidence in the file that she acted for her own purposes outside the scope and potential control of the activities of the reported legal entity³, determined the purpose and means of processing the health data of the complainant and therefore is considered a data controller. Specifically, with the contested processing of the data concerning the complainant, particularly with the disclosure of the complainant's health data not only within the sphere of the data controller but also to the Independent Directorate of Civil Protection of Region Y, the General Director acted with the aim of ensuring the smooth operation of the services of the reported entity⁴ as the data controller.

3. Article 5(1) of the General Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data (hereinafter GDPR) sets out the principles that must govern any processing. Specifically, paragraph 1 states that: "1. Personal data shall be: a) processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'), b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest or for scientific or historical research purposes or for statistical purposes shall not be considered incompatible with the initial purposes in accordance with Article 89(1) ('purpose limitation'), c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization') ...".

4. It is also noted that the GDPR adopts a new compliance model, the central element of which is the aforementioned principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in compliance with the relevant legal provisions. Furthermore, the data controller bears the additional duty to demonstrate on its own and at any time its compliance with the principles of Article 5(1) of the GDPR. It is not coincidental that the GDPR incorporates accountability (see Article 5(2) of the GDPR) into the regulation of the principles (Article 5(1) of the GDPR) governing processing, thereby providing it with the function of a mechanism for their compliance, essentially reversing the "burden of proof" regarding the lawfulness of processing (and generally the adherence to the principles of Article 5(1))

4 See also Article 19 of the Internal Service Regulation of the reported entity (Government Gazette ...).
15

GDPR), transferring it to the data controller, so that it can be reasonably argued that he bears the burden of invoking and proving the legality of the processing.

Because, as the Authority has ruled, taking into account the decisions of the Court of Justice of the European Union (CJEU) and the Council of State, in order for personal data to be processed lawfully, that is, processed in accordance with the requirements of the GDPR, the conditions for the application and adherence to the principles of Article 5(1) of the GDPR must be cumulatively met. The existence of a legal basis (Articles 6 and 9 GDPR) does not exempt the data controller from the obligation to adhere to the principles (Article 5(1) GDPR) regarding the lawful nature, necessity, proportionality, and the principle of data minimization. In the event that any of the principles set out in Article 5(1) GDPR is violated, the processing in question is deemed unlawful (contrary to the provisions of the GDPR), and the examination of the conditions for the application of the legal bases of Articles 6 and 9 GDPR for the processing of, respectively, simple and special categories of personal data becomes redundant.

Consequently, the unlawful collection and processing of personal data in violation of the principles of Article 5 GDPR is not remedied by the existence of a legitimate purpose and legal basis.

5. In this case, as emerges from the case file (see the document with reference number ... from the complainant), the General Director of the Water Supply and Sewerage Company (DEYA) X on 31-03-2022 communicated to the Personnel Department of DEYA X, the President and the Secretariat

of the Board of Directors of the latter, as well as to the Director of the Administrative – Financial Department, an email message that included data concerning the complainant, particularly a detailed analysis of her presentation at the Board of Directors meeting of the complainant on 29-03-2022 regarding her illness from coronavirus. The purpose of this message, according to the complainant, was to inquire with the Head of the Administrative Department of DEYA X whether the complainant had submitted a Certificate of Negative Diagnostic Test for coronavirus posted on the gov.gr system during the relevant meeting of 29-03-2022.

From the examination of the case file, it also appears that there was, on the part of the General Director of the complainant, the sending of a document with reference number ... to all members of the Board of Directors of the latter, which communicated the document with reference number (of DEYA X) ... that had been sent to the Independent Directorate of Civil Protection of Region Ψ. With this document, which included as attachments, among other things, the medical opinions of the complainant and the results of the diagnostic tests to which she had been subjected, the aforementioned Independent Directorate was requested to provide information on the measures that DEYA X must take in order to comply with the urgent measures to address the negative consequences of the emergence of the coronavirus and the need to limit its spread, as well as for the legitimization of the complainant's in-person participation in the relevant meeting of 29-03-2022.

The two aforementioned processing actions, regardless of the legality of the initial collection of the medical opinion dated 28-03-2022, which the complainant herself submitted to DEYA X, took place within the sphere of the same data controller, to the extent that they were communicated to certain employees of DEYA X as well as to the members of its Board of Directors. However, in order to serve the purposes for which the above processing took place, it was not necessary to communicate all of the said data to all recipients, even within the sphere of the same Data Controller, namely DEYA X. Specifically, in the first case, the purpose of sending the message, within the sphere of DEYA X as the data controller, which consisted of the inquiry to the Head of the Administrative Department of the complainant regarding whether the complainant had submitted a Certificate of Negative Diagnostic Test for coronavirus on the date of her participation in the relevant Board meeting on 29-03-2022, could have been achieved by sending the relevant message only to the Head of the Administrative Department, without communicating it to the other recipients, especially considering that the meeting with the presence of the complainant had already taken place. Likewise, for the second aforementioned communication to all members of the Board of Directors...

17

members of the Board of Directors of DEYA X, thus again within the sphere of the data controller, a document that addressed specific questions to another service including a series of documents that contained both simple personal data of the complainant as well as special categories of such data, it is clearly established that the purpose of informing the members of the Board of Directors, beyond the fact that it seems initially to lack meaning since they were already informed about the health status of the complainant from the date of the contentious meeting on 29-03-2022, in which the complainant was present in person, and any subsequent knowledge of this information would be difficult to justify for the sake of protecting the health of employees -contradicting the claims to the contrary made by DEYA X¹¹-, could only be achieved by sending the document to the Independent Directorate of Civil Protection of Region Ψ without the other accompanying documents or simply referencing the questions posed for response to that Directorate. Therefore, it follows from the above that DEYA X, as the data controller, in violation of the principle of data minimization, disclosed the complainant's data to more recipients even within the sphere of the same data controller, without such processing being necessary, as previously indicated. Furthermore, from the elements of the file, there is neither evidence nor is there any internal policy or other internal document presented within which specific service recipients of employee data within the sphere of the complainant as the data controller are identified, from which classified access to information constituting special category data (health data) is also determined. The above finding regarding the non-existence of relevant internal policies is further reinforced by the fact that again within the sphere of the same Data Controller, namely DEYA X, the complainant as an employee of the latter became aware of service documents concerning her, of

which she was not a recipient. Moreover, it is noted that the limitation of the contentious personal data as well as the recipients of such personal data of the complainant to those necessary for achieving the respective intended purpose cannot, by its nature, undermine the effective administration of DEYA X, especially considering that these events occurred after the presence of the complainant at the contentious meeting of the Board of Directors on 29-03-2022, while the present members of that Board appear from the elements of the file to have already been informed about the health status of the complainant, as mentioned above. Regarding the claim of DEYA X, which is first raised in its post-hearing memorandum¹², that the informing of its Board members was necessary for reasons of readjusting service priorities due to the absence of the complainant as well as for ensuring the smooth operation of the service, this is rejected as irrelevant and therefore inadmissible to the extent that even an accurate supposed claim -which would be difficult to accept given that it concerned the absence of one employee- in any case, for the informing of the Board members in both of the above cases, the acts of processing the complainant's contentious data, as they occurred as detailed above, were not necessarily required by logical necessity. Finally, it is noted that the issue to be discussed at the contentious meeting of the Board of Directors of the complainant concerned a matter of the complainant's professional advancement¹³ and therefore the aforementioned health data that underwent the said processing acts were in no way critical for the members of the Board of Directors of DEYA X, to the extent that they were not related to their judgment in the context of issuing a decision on the matter to be discussed at the meeting. Therefore, a violation of the provision of Article 5(1)(c) of the GDPR is established for both of the above-described autonomous processing acts, rejecting all related claims of the complainant.

6. Regarding the aforementioned processing of the complainant's data outside the sphere of the data controller, which consists this time of the sending by the General Director of DEYA X of the above-mentioned electronic message with protocol number (of DEYA X) ... to the Independent Directorate of Civil Protection of Region Ψ including a series of documents with personal data

¹² See page 25 of the post-hearing memorandum with protocol number Γ/ΕΙΣ/5059/07-07-2023 of DEYA X.

¹³ See pages 19-21 of the post-hearing memorandum with protocol number Γ/ΕΙΣ/5024/06-07-2023 of the complainant as well as the related documents submitted by DEYA X with protocol number Γ/ΕΙΣ/5059/07-07-2023 in its post-hearing memorandum.

19

the data of the complainant, and specifically not only simple data but also special category data, namely her health data (see in particular the medical reports concerning her as well as the results of the diagnostic tests for coronavirus infection to which she had been subjected), the following should be noted: Firstly, it is noted that with the aforementioned document, which was transmitted by the respondent to the above-mentioned Independent Directorate, personal data of the complainant were sent, and directions were requested, as previously mentioned, regarding what measures the respondent should take in order for its actions to be aligned with the urgent measures to address the negative consequences of the emergence of the coronavirus, as well as whether the in-person appearance of the complainant at the Board of Directors meeting of DEYA X on 29-03-2022 was legitimized. However, from the response with protocol number ... of the aforementioned Independent Directorate, it appears that it lacked any authority to decide on the two questions posed to it by the respondent DEYA X, as it is stated in the above response that "the only competent authorities for conducting contact tracing are the General Secretariat for Civil Protection and the National Public Health Organization, which exclusively collect, process, and manage the data of confirmed COVID-19 cases." Furthermore, with the same document, the Independent Directorate referred DEYA X to the document number 6214/23.12.2021, published in the Government Gazette B', as well as to its amendments or clarifications, where the measures and procedures for isolation are thoroughly outlined. Therefore, from the above response of the Independent Directorate, it follows that the claim made by the response with protocol number Γ/ΕΙΣ/12638/16-12-2022 of the respondent to the Authority (see pages 17 and 22) that the aforementioned Directorate manages and processes personal data related to infected individuals and thus already knew the personal data of the complainant is unfounded. Likewise, the same assertion made by the respondent, which is reiterated

in its response with protocol number G/EIS/5059/07-07-2023 after the hearing (see page 7 of the latter), is also unfounded, as from the wording of the provisions invoked by DEYA X itself, the aforementioned authority for processing personal data of individuals infected with the coronavirus does not arise from the relevant Independent Directorate of Civil Protection of Region Ψ.

Moreover, even if it were to be assumed that the Independent Directorate of Civil Protection of Region Ψ was competent to address the questions posed to it by the respondent DEYA X, it was not required, according to common sense, to attach to the said email, among other things, the medical reports of the complainant as well as the results of the diagnostic tests to which she had been subjected, since these data do not contribute anything to a Service in order for it to decide what the already regulatory prescribed measures are that must be taken to limit the spread of the coronavirus, as well as whether the in-person participation of an employee who has been infected or is infected with the coronavirus in a meeting of a collective body is legitimized. In light of the above, it follows that the principle of data minimization under Article 5(1)(c) of the GDPR was violated, as the respondent DEYA X disseminated both simple and special category data, namely health data, of the complainant to the aforementioned Independent Directorate, while such dissemination was not objectively necessary for fulfilling the purpose of responding to the questions posed, given the content of the latter, as elaborated above. Specifically, even in the event that the aforementioned Independent Directorate was competent to address the issues raised by the General Director of the respondent regarding the determination of the necessary measures to limit the spread of the coronavirus, it would not be logically necessary for it to have the documents attached to the relevant email containing the complainant's data (see in particular the medical reports submitted by her and the results of the diagnostic tests to which she had been subjected) in order to decide on them. Given the violation of the principle of data minimization under Article 5(1)(c) of the GDPR, as stated above, as one of the fundamental principles that must govern any processing, such as the contested data provision of the complainant to the Independent Directorate of Civil Protection of Region Ψ, the examination of the foundation of one of the legal bases under Article 6 (in conjunction with Article 9) of the GDPR and consequently the related claims of DEYA X is unnecessary.

21

X, which in any case does not initially appear to be substantiated, as the existence of any legal grounds does not exempt the data controller from adhering to and applying the general principles of processing set forth in Article 5(1) of the GDPR as mentioned above (see above para. 4).

Consequently, a violation of the provision of Article 5(1)(c) of the GDPR is established, and therefore the further claims of the respondent are entirely unfounded and thus must be dismissed. Finally, it is noted that with the document number ... (reference number DEYA X ...) from the Independent Directorate of Civil Protection of the Region of Y, the latter confirmed that the content of the contested file containing the personal data of the complainant has not been transmitted to third parties and that only the Director of the said Service has been made aware of its content, while no further processing of any kind has occurred. With this document, the relevant file of the complainant was returned to DEYA X. During the hearing, it was confirmed by the Director, Mr. S, that no data of the complainant from the contested file transmitted by DEYA X has been included in the records of the aforementioned Independent Directorate and that the file was returned. Following this, there is no reason for further inspection of the aforementioned Directorate, according to the authority of the Authority.

7. Since a violation of the principle of data minimization under Article 5(1)(c) of the GDPR is established, and indeed in three (3) separate acts of processing, as detailed above. Furthermore, it is established that the violation of the principles set forth in Article 5 of the GDPR that must govern any processing of personal data incurs the imposition of relevant sanctions under Article 83(5)(a) of the GDPR.

8. According to the GDPR (Recital 148), in order to strengthen the enforcement of the rules of this Regulation, sanctions, including administrative fines, must be imposed for each violation of this Regulation, in addition to or instead of appropriate measures imposed by the supervisory authority in accordance with this Regulation.

15 See in this regard the Decision No. 30/2021 of the Authority, para. 19.

9. Based on the above, the Authority deems it appropriate to exercise its corrective powers under Article 58(2)(d) and (h) of the GDPR in relation to the established violations.

10. The Authority further considers that the imposition of only one corrective measure is insufficient for restoring compliance with the provisions of the GDPR that have been violated and that, based on the circumstances established, an effective, proportionate, and deterrent administrative monetary fine must be imposed under Article 83 of the GDPR both for restoring compliance and for punishing the unlawful behavior.

11. Furthermore, the Authority took into account the criteria for assessing fines set forth in Article 83(2) of the GDPR, paragraph 5(a) of the same article, according to which the violation of the provisions regarding the fundamental principles of processing falls under the highest category of the administrative fines grading system applicable in the present case, the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 issued on 03-10-2017 by the Article 29 Working Party (WP 253), the Guidelines of the European Data Protection Board for calculating administrative fines under the GDPR, as well as the factual data of the case under examination and in particular:

A. For the violation of the provision of Article 5(1)(c) of the GDPR regarding the communication by the General Director of DEYA X on 31-03-2022 to the President and the Secretariat of the Board of Directors of the latter, as well as to the Director of the Administrative – Financial Department, of an email detailing the complainant's presentation at the Board of Directors meeting of the respondent on 29-03-2022 regarding her illness from coronavirus, as well as for the violation of the same provision of Article 5(1)(c) of the GDPR that

16 See WP 29, Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 WP253, p. 6.

17 See EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR, version 2.1, adopted on 24 May 2023, which states among other things (see p. 3 and 6) that they apply complementarily in relation to the aforementioned Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679, WP253.

23

concerns the sending by DEYA X of document no. ... to all members of its Board of Directors, which communicated to them the document no. (of DEYA X) ... that had been sent to the Autonomous Directorate of Civil Protection of Region Ψ, including as attachments, among other things, the medical opinions of the complainant and the results of the diagnostic tests to which the latter was subjected. The Authority, taking into account the criteria of the aforementioned recital no. 148 of the GDPR, weighing that these are processing activities that took place within the sphere of the same data controller, instructs the accused DEYA X to ensure that the processing of personal data it undertakes is in compliance with the provisions of the GDPR by developing relevant internal policies for recipients of personal data as well as for classified access within DEYA X to its internal documents, especially when they include health data, within three (3) months from the notification of this decision.

B. For the third separate violation of the principle of data minimization under Article 5(1)(c) of the GDPR, which concerns the sending by DEYA X of the aforementioned email no. (of DEYA X) ... to the Autonomous Directorate of Civil Protection of Region Ψ, including, among other things, the medical opinions of the complainant and the results of the diagnostic tests to which the latter was subjected, the Authority takes into account:

- i. The fact that the violation of the provision of Article 5(1)(c) of the GDPR concerns a fundamental principle that must govern every act of processing personal data (Article 83(2)(a) GDPR).
- ii. The fact that the processing in question also concerned health data of the complainant, as the document in question included as attachments, among others, the medical opinions of the complainant as well as the results of the diagnostic tests to which the latter was subjected (Article 83(2)(g) GDPR).
- iii. The fact that the aforementioned violation was not long-lasting, while it concerned only one affected data subject to whom it did not cause any economic damage (Article 83(2)(a) GDPR).

- iv. The fact that the violation of the principle of data minimization is attributed to the negligence of the accused, as, for example, it did not take care to consult its Data Protection Officer regarding the proper way to manage a personal data processing issue (Article 83(2)(b) GDPR).
- v. The absence of previous established violations by the accused, as a relevant audit shows that no administrative sanction has been imposed on it by the Authority to date (Article 83(2)(e) GDPR).
- vi. The fact that from the information presented to the Authority, based on which it established the violation of the GDPR, the data controller did not gain any economic benefit, nor did it cause material damage to the complainant (Article 83(2)(j) GDPR).
- vii. The fact that the accused sent to the Autonomous Directorate of Civil Protection of Region Ψ the document no. ... stating that it decided to limit the further processing of the personal data of the complainant, as included in the document no. ... request sent to the aforementioned Autonomous Directorate, and requested to be informed whether the Autonomous Directorate transmitted the personal data of the complainant to third parties, how many individuals in that Directorate were aware of the relevant data, and whether the personal data were subjected to any other processing act. At the same time, it requested the return of the case file as well as any copies, whether physical or electronic. Therefore, it follows from the above that the accused DEYA X undertook the above action to mitigate the consequences of the processing that took place in violation of the principle of data minimization as extensively mentioned above (Article 83(2)(c) GDPR).
- viii. The fact that the content of the relevant file with the personal data of the complainant, as confirmed by the aforementioned Autonomous Directorate, was not further transmitted to third parties and was only known to the Director of that Service, and the relevant personal data did not undergo any further processing, while the relevant file of the complainant was returned to DEYA X (Article 83(2)(j) GDPR).
- ix. The fact that the accused serves a public benefit purpose and presents deficient financial statements (see the relevant financial statements for the...

use of 2022, published on the website of the Municipal Water Supply and Sewerage Company of X, ...), taking into account Article 39 of Law 4624/2019.

12. Based on the above, the Authority unanimously decides that administrative sanctions, as mentioned in the operative part, must be imposed on the respondent as the data controller, which are deemed proportional to the severity of the violations. Furthermore, these sanctions constitute effective measures towards compliance with the provisions on the protection of personal data and, at the same time, have a deterrent character to prevent further violations of the relevant legislation by the respondent. Therefore, the conditions for exercising the corrective powers of Article 58(2)(d) and (h) of the GDPR are met, which are deemed proportional to the severity of the violation.

FOR THESE REASONS

The Authority

- a) Imposes on the respondent data controller, the Inter-Municipal Water Supply and Sewerage Company of X, the effective, proportional, and deterrent administrative monetary fine that is appropriate for this specific case, according to its particular circumstances, in the amount of one thousand (1,000) euros for the violation of Article 5(1)(c) of the GDPR, as analyzed in section B of paragraph 11 of this document, in accordance with Articles 58(2)(h) and 83(5)(a) of the GDPR; and
- b) Orders, pursuant to Article 58(2)(d) of the GDPR, the data controller (Municipal Water Supply and Sewerage Company of X) to ensure that the processing of personal data it carries out is in compliance with the provisions of the GDPR by developing relevant internal policies for recipients of personal data and for tiered access within the Municipal Water Supply and Sewerage Company of X to its internal documents, especially when they include health data, within three (3) months from the notification of this decision.

The Deputy President

The Secretary
Georgios Batzalexis
Irini Papageorgopoulou